

IT Terms of Use

Version 3.0 (January 27, 2025)

20011



These IT Terms of Use (hereinafter referred to as “ITBO”) contain basic rules for using the IT systems, services and data of Fraunhofer-Gesellschaft zur Förderung der angewandten Forschung e. V. (hereafter referred to as “Fraunhofer-Gesellschaft” or “Fraunhofer”). They are aimed at all users of Fraunhofer IT, including external parties who receive access to the Fraunhofer intranet on an exceptional basis. The obligations set out in this ITBO apply to everyone; the rights, especially those to private use, are limited to employees of the Fraunhofer-Gesellschaft.

I. Objectives

This ITBO serves

- to ensure information security and data protection,
- to protect IT and the personal rights of users,
- to observe laws and contracts vis-à-vis project and business partners, and
- to protect intellectual property.

For this purpose, the ITBO

- informs users about the general terms related to IT use,
- requires them to observe these terms and
- makes measures for logging and monitoring IT use and for processing personal data resulting from IT use clear.

Important IT-related rules that are relevant to all users from internal regulations on information security and the relevant central works council agreement are taken into account.¹

II. General Terms of Use

The following terms apply to all types of IT use:

- To support scientific work, the Fraunhofer-Gesellschaft grants the users of its IT great freedom in their IT use. Many aspects of IT use are not regulated in detail but are set out generically and are not enforced with technical measures. Therefore, users are bound to act and think in a risk-conscious and responsible manner that promotes the objectives of this ITBO.
- Any IT use for extremist, racist, pornographic, or criminal purposes is prohibited.
- Any IT use and information processing that violates applicable law (e.g., personal rights or copyright laws), compromises IT security, or damages the reputation of the Fraunhofer-Gesellschaft is also forbidden.
- Users generally have personalized user accounts on workplace computers, personalized email accounts, and personal data storage on other systems (known as the “personal area”). Fraunhofer only accesses the data stored there in cases of emergency or suspected abuse in accordance with the regulations of the central works council agreement “IT Principles.”
- Fraunhofer IT is to be primarily used to fulfill work-related tasks. Private use is allowed to employees insofar as there are no disadvantageous effects on the IT and provided that this does not result in additional requirements for Fraunhofer. Conditions for private use can be found in section III.

- The Fraunhofer-Gesellschaft neither offers nor assumes a guarantee, warranty, or liability for the continuous availability or freedom from defects of the IT. Moreover, it may completely or partially modify, limit, or end IT services and prohibit their use at any time.
- Users can neither apply for nor assert patents, brands, or other rights (for themselves or third parties) for project or domain names, expertise, and other information that belongs to or can be attributed to Fraunhofer or its business partners unless the rights holders have given their written consent.
- The terms of licenses for software and services, including cloud services, and those that apply to the use of content such as images and texts must be observed. License keys and rights must not be passed on to others or used otherwise without permission from the Fraunhofer-Gesellschaft.
- Information is to be classified and protected with regard to the level of protection it requires in accordance with the internal regulation on information classification and with external regulations. Project managers or managers decide how these rules are to be implemented in their respective area of responsibility.
- Identified or suspected security vulnerabilities or information security / data protection incidents must be reported without delay. Unless otherwise specified at the local level, these must be reported to the Fraunhofer ServiceDesk (email: servicedesk@fraunhofer.de, phone: +49 2241-14-1414).
- Instructions on the use of internal services as well as emails, announcements, and other information regarding IT use are to be observed. Upon introduction of new services or in the event of doubt, users need to proactively check whether there are specific rules for IT use.
- In keeping with the rules that apply at their institute, users must participate at least once annually in awareness and training measures on the topic of information security and should also observe current security information.

III. Terms of private use

The Fraunhofer-Gesellschaft assumes that prohibiting private use of IT in research is not productive and that entirely separating work-related and non-work-related use is virtually impossible owing to various factors, including the close collaboration that exists with universities. For that reason, employees of the Fraunhofer-Gesellschaft are permitted to engage in non-work-related use subject to the following conditions:

- No additional requirement or risk of liability for the Fraunhofer-Gesellschaft may result from the private use of IT. The security and functionality of IT services must not be impaired by private use. Possible legal restrictions or requirements from clients are to be observed.
- Users are not entitled to operate private devices using work-related internet access or to install software for private use on work-related devices. Such use requires permission from the manager and the head of the IT department.
- Data storage, administration, logging, monitoring of data traffic, troubleshooting, deleting data, and setting up devices take place according to operational requirements and without specific consideration of private use. There is no individual right to exclude private data from data storage or private connections from logging and data analysis admissible for work-related data. There is no claim for private data to be backed up or recovered.
- For reasons of provisions related to funding, private use is limited to occasional use. Use for private business purposes is not permitted.
Work-related email addresses, social media accounts, and other work-related addresses should not be used

publicly as contact addresses for private communication. Private data should be saved in a personal area and labeled as private.

- For operational reasons, private use may be restricted or prohibited in cases of special security requirements.

IV. Logging and monitoring

Within the scope of IT operations, personal data concerning users is processed in order to enable operation and ensure the security thereof. This data may include private data from permitted private use.

- Work-related and private emails suspected of containing malicious code, viruses, or spam may be quarantined at the discretion of the Fraunhofer-Gesellschaft or deleted centrally.
- Authorized staff may analyze personal data resulting from IT use for purposes of system administration, such as for analyzing and removing system errors, ensuring IT security, operational security, and information security, and supporting maintenance.
- This also applies to preventing cyberattacks. In certain cases, a forensic examination of the systems may be carried out. Data from the operating system and related software, traffic data from internet services, and tool-related data can be logged and may contain personal data, which may be examined to prevent or analyze cyberattacks. The log data is usually deleted after 30 days.

V. Changes to the IT Terms of Use and entry into force

The Fraunhofer-Gesellschaft may change or amend this ITBO at any time, in particular in the interest of its operational procedures and of information security. This ITBO replaces the previous ITBO version 2.0 and enters into force with its announcement. The announcement is made in a suitable manner, e.g., via hard-copy distribution, email, or publication on the intranet. The same applies to future changes or amendments to the ITBO. Notwithstanding this, a change or amendment shall be deemed approved with respect to users who are not employees of the Fraunhofer-Gesellschaft if no objection is raised within one month of notification of the change or amendment, or if Fraunhofer IT continues to be used after the end of the objection period. This will be pointed out on announcement of the change or amendment. In case of an objection, the right of use may be withdrawn.

Annex: Supplementary Information on Implementation

Version FhG02

The Fraunhofer-Gesellschaft has rules that apply to all users in order to ensure appropriate protection, use, and handling of information and other associated assets. As much as they possibly can, users must take all measures to minimize risks to Fraunhofer and promote the objectives of the ITBO. The most important measures are summarized below. Taking into account works council agreements and other regulations, department heads or project managers make decisions about specific exceptions in consultation with the information security officer.

1 Securing devices

Access by unauthorized persons to IT systems at the workplace, IT services, or data carriers and their data must be prevented. Smartcards are to be locked away or kept on one's person. Computers must be locked even in cases of brief absence; in cases of extended non-use, they must be shut down. Offices should be locked when unoccupied. Virus scanners and other security measures must not be circumvented.

2 Passwords and certificates

Passwords (and other credentials such as PINs) are usually bound to a specific person and may not be passed on to third parties. Passwords must be secure and be kept secret. Official passwords must not be used for private purposes. Passwords that are used for internal services may not be used for external or internet services as well. Smartcards and personal electronic keys or certificates must be treated as confidential and not shared with others. The same applies to the corresponding PINs. Use of password manager software is strongly recommended in order to facilitate compliance with the above requirements.

3 Software installation

New software may only be installed with the approval of the IT staff responsible unless it is authorized software from internal sources. The software license must cover use thereof by the Fraunhofer-Gesellschaft for work-related, not only for private purposes. Should a user be asked by the IT administration to perform an installation manually, they should do so in a timely manner. Where users, such as those who work at developer workstations, receive administration rights on an exceptional basis and are permitted to install software themselves, they must observe special security rules pointed out to them by the IT administration (including installation of patches and updates). Software may only be obtained from trustworthy sources, and updates must always be installed promptly or, if possible, automatically.

4 Email use

The Fraunhofer email address is to be used for work related to the Fraunhofer-Gesellschaft. Automatically forwarding work-related emails to external email accounts is prohibited. Private emails should be stored separately from work-related emails, and private email folders should be designated as "private" in the folder name.

5 Network use

External devices may only be connected to eduroam or a guest network but not to an internal network of the institute. Computers, printers, phones, and other devices may only be integrated into the internal network following permission from the responsible IT department. Devices that need to be integrated into the network may only be configured by authorized employees. Programs that monitor network traffic may only be used by explicitly authorized employees for work-related purposes or by those with exemption authorization from the information security officer or the head of the IT department.

6 Internet and Cloud Services

Company data may only be stored on IT systems that are operated by Fraunhofer itself or by service providers commissioned by Fraunhofer (see Office 365). Saving company data in public cloud services like Dropbox, Google accounts, and so on is prohibited in many cases according to data protection regulations and other laws, contracts, and works council agreements. Prior to the transfer of company data to service providers, project managers and managers must be consulted, who will then decide whether such transfer is permissible and whether security measures are to be taken.

Users must ensure that such accounts remain accessible and their credentials are not forgotten (e.g., when they leave the department) by noting the credentials for work-related accounts, particularly for social media accounts, and reporting them to their manager or the project manager. Synchronizing internal address directories with external services is prohibited.

7 Artificial intelligence

AI systems can make people's work easier. However, when they are used, care must be taken to ensure that no internal — or worse, confidential — data requiring protection is shared with service providers or indirectly reaches third parties via systems that are capable of learning. For this reason, only internal Fraunhofer systems or systems approved for certain projects, tasks, or data may be used. Copyright to generated content must also be observed. Whether AI systems can be used for work and if so, how, must be discussed with the relevant project manager or manager. The admissibility of AI must be assessed for the specific purposes. Legal requirements from the AI Act and internal regulations, including the registration requirement for providers of high-risk AI systems, must also be met. The fact that AI-generated output is not always reliable must also be taken into account.

8 Treatment of confidential data

To protect the confidentiality of data, the provisions on information classification are to be observed. Information that is not classified as "Public" and is unlabeled should be viewed as "Restricted." This information may only be made accessible to people who need it in order to perform their tasks and must not leave Fraunhofer without the consent of the information controller, meaning in particular that it must not be forwarded to external parties or stored in external cloud services (providers not under contract with Fraunhofer). Moreover, data classified as "Confidential" or "Strictly confidential" must be given special protection. In particular, it must be visibly labeled and sent with encryption unless the department head or project manager has set stricter standards. Data classified as "Public" is not subject to these limitations; however, any existing rights of third parties, such as copyrights, must be observed prior to distribution. The project manager and the department head provide information about further requirements and exceptions.

9 Use of mobile devices

Notebooks, smartphones, and tablets used for work-related purposes require special security measures.² They are not to be left unattended in public spaces. If the IT department has not configured security settings, users must do so themselves. PIN or password entry as well as an automatic screen lock need to be enabled when the device is not in use. After repeatedly entering a wrong PIN or password (maximum 10 times), all information has to be deleted where possible. Jailbreaking and rooting mobile devices are forbidden. If additional apps may be installed, they may only be obtained from app stores authorized by the manufacturer or other trustworthy sources. Unencrypted work-related data, in particular address books and emails, must not be saved using external services or synchronized via the manufacturer's cloud. If a device is lost, the IT department responsible or the Fraunhofer ServiceDesk must be informed immediately. Where possible, the data will be deleted remotely, and the loss will be reported via official channels.

10 Use of private hardware

Using non-Fraunhofer hardware for work-related purposes of the Fraunhofer-Gesellschaft ("bring your own device," BYOD), particularly private hardware (including cameras as well as USB flash and thumb drives), requires prior approval by the head of the IT department in consultation with the information security officer of the entity.

Neither the user nor Fraunhofer can request the use of private devices. Work-related data must be kept separate from private data and needs to be protected in particular. Family members and other persons must be prevented from accessing work-related data. When an employee leaves the Fraunhofer-Gesellschaft, work-related data must be deleted unless otherwise agreed with the department head or project manager.

The entity's IT department must be allowed to check security settings. If BYOD is allowed for smartphones and tablets, the regulations in the section titled "Use of mobile devices" apply. Furthermore, specific software with a container is generally installed. Data must not be exported from the container; when the container is open, the device must not be handed over to a third party. Access to email or groupware systems must take place only using the container software. The Fraunhofer-Gesellschaft can inspect work-related device data in the event of an emergency or suspected abuse in accordance with the regulations of the central works council agreement "IT Principles." If private data is inadvertently deleted during a remote deletion or remote access, no claim for damages can be made.

11 Remote work and conduct when traveling

Use of IT services outside the workplace, such as when working from home or working while traveling, requires special safeguards. Users must ensure that third parties cannot overhear confidential conversations and cannot observe any data displayed, for example, by reducing display brightness or protecting the display from being viewed. Devices may not be left unattended. Devices are to be locked during brief absences and secured physically where possible, e.g., by using a cable or by locking them away. When traveling, it may be necessary to ask someone to watch the device for a short time. Devices must be turned off entirely in the event of a longer absence or at a hotel. Risks must be weighed in the case of foreign travel. It may be necessary to use a separate travel device that contains only the data needed for the specific job at hand. This especially applies to travel to high-risk countries. The info sheet on foreign travel must be observed.

12 Data back-up

Back-ups are to be taken care of by the Fraunhofer-Gesellschaft or its entities. The use of private data storage for this purpose is prohibited. Users must read up on back-up regulations. If, for compelling reasons, data or emails can only

be stored on an end device instead of a server, this data might not be backed up automatically. In such cases, the user must confer with the IT department and their manager to ensure appropriate data storage and will take responsibility thereof.

13 Storing data

Project results and other work-related data must be stored securely in accordance with legal requirements, contracts in force, and the rules of good scientific practice. In general, data must be retained for at least 6 years (official emails and letters in particular); the minimum retention period for contracts and accounting records is 10 years. Project results and data required for their traceability may require even longer retention periods. Administrative data (contracts and business correspondence in particular) is stored in a timely manner in the project folder or file belonging to the project or department. Other data (such as project content) may be archived in different ways in accordance with the local institute's rules. The project managers and department heads provide information about applicable rules and procedures.

14 Returning equipment and turning over data upon departure from Fraunhofer

Users shall, prior to their departure from the Fraunhofer-Gesellschaft, hand over all equipment received from the organization, such as cell phones, laptops, and portable storage devices, and save project results as well as other work-related data in the appropriate project files or folders according to the previously mentioned rules for further work. Moreover, they should delete their private data from Fraunhofer storage media. Since selection and transfer of emails, in particular, may not always be possible, the institute may store private data (home directory and email account) beyond the employment relationship and within legally permissible time limits (usually for 10 years) when there is a valid reason. Data inspection is only admissible in the presence of the responsible employee representative or a representative appointed by the works council. Users who have left Fraunhofer have no right to Fraunhofer continuing to store their private data or making it accessible to them on a further basis. Email accounts are disabled after the owner of the account has left Fraunhofer and deleted later on.

Endnotes

¹ Central works council agreement "Principles of IT Use" as well as the internal regulations "Information Classification" and "Information Security"

² Different requirements apply to test and development devices.

Acknowledgment and agreement to the IT Terms of Use of the Fraunhofer-Gesellschaft

I,

Richard Thiem,

hereby declare that I am aware of the directives contained in this IT Terms of Use document and its appendix, and I agree to adhere to them.

Insofar as I use Fraunhofer-Gesellschaft IT privately, I expressly accept the terms of private use as outlined in section IV of this ITBO.

Insofar as I am not an employee of the Fraunhofer-Gesellschaft but an external user, the obligations and rules in the ITBO also apply to me in the same manner. The rights that employees have as described in the IT Terms of Use, e.g. the right to private use, do not apply to me for legal reasons.

Rostock, 05th May 2025

Place and Date



Richard Thiem